

STATEMENT OF WORK

Maintenance and Service for various Government-Owned Becton Dickinson and Company Flow Cytometer Equipment

BACKGROUND

The U.S. Department of Health and Human Services (HHS), National Institutes of Health (NIH), National Cancer Institute (NCI), Center for Cancer Research (CCR) requires maintenance and support for twenty-two (22) Government-owned Becton Dickinson and Company (BD) Flow Cytometers (FACSymphony A5s, FACSymphony A3s, FACSymphony S6s, LSR Fortessas, LSR Fortessa X-20s, FACSarias IIIs, FACSaria Fusion and, FACSCanto II) which are used extensively by multiple CCR NCI CORE Flow Cytometry Facilities in support of ongoing cancer research and patient care efforts.

OBJECTIVE

The government requires the services of a contractor to provide maintenance service as stated in the Statement of Work.

SCOPE OF WORK

The Contractor shall provide all labor, material, and equipment necessary to maintain and provide preventive maintenance for the following Government-owned Becton Dickinson and Company equipment and their associated system components such as autoloaders, lasers, and other items:

1	BD FACSymphony A5	R66096400137
2	BD FACSymphony A3	H66093700003
3	BD FACSymphony A5	H66096400111
4	BD FACSymphony S6	R66293700077
5	BD FACSymphony A3 SORP	R66093700078
6	BD FACSymphony A3 SORP	R66093700213
7	BD LSR Fortessa 3-Laser SORP	H64717700068
8	BD FACSymphony S6	R66293700074
9	BD LSR Fortessa SORP	H64779500002
10	BD LSR Fortessa SORP	R64717700219
11	BD LSR Fortessa X-20	H656385004
12	BD LSR Fortessa X-20	R656385208
13	BD FACSymphony A5	R66096400135
14	BD FACSaria Fusion	R65828200122
15	BD FACSymphony S6	R662937A0013
16	BD LSR Fortessa SORP	H64717700105
17	BD FACSaria III	P64828200227
18	BD FACSCanto II	V33896202274
19	BD LSR Fortessa SORP	H17700008

20	BD LSR Fortessa SORP	H64717700128
21	BD FACSymphony A5	R660964000078
22	BD FACSAria Fusion	P65828200015
23	BD LSRFortessa - 3Laser (B, R, V)	R649225B1014

All maintenance services shall be performed on-site in accordance with the Original Equipment Manufacturers (OEM) most current standard commercial maintenance practices. Onsite and emergency services shall be provided during standard business hours (Defined as 8:00 – 17:00 EST, Monday through Friday, excluding Federal Holidays found at www.opm.gov/policy-data-oversight/pay-leave/federal-holidays) and extended hours (17:00 – 21:00 EST, Monday through Friday) for any issues not able to be resolved remotely, or during normal business hours. Software updates/services may be provided remotely as applicable. All travel, labor, materials, and related charges shall be included in the purchase order price.

GENERAL PERFORMANCE REQUIREMENTS

PREVENTIVE MAINTENANCE

The Contractor shall perform two (2) planned preventive maintenance (PM) inspections during the contract period. PMs shall be performed by technically qualified factory-trained personnel. PMs shall consist of a thorough cleaning, calibration, adjusting, inspection, and testing of all equipment in accordance with the manufacturer's latest established service procedures. All equipment shall be operationally tested through at least one (1) complete operating cycle at the end of the PM inspection to ensure optimal, efficient, and accurate performance of the system and its associated components.

EMERGENCY SERVICE

On-site, emergency repair service visits shall be provided during the term of this contract at no additional cost to the government. Emergency services shall be provided during normal working hours, Monday through Friday, 8:00 – 17:00 EST, excluding Federal Holidays. Upon receipt of notice that equipment or associated components are not functioning properly, the Contractor's technical support staff shall within one (1) hour of the notice provide an initial response. If the issue is not able to be resolved via technical support the contractor shall within forty-eight (48) hours furnish a qualified factory-trained service representative to inspect the equipment and perform all necessary repairs and adjustments required to restore the equipment to normal and efficient operating condition. Emergency service calls shall not replace the necessity for planned preventative maintenance. All labor, materials, and travel shall be included in the purchase order pricing.

REPLACEMENT PARTS

The Contractor shall furnish all required replacement parts at no additional cost to the Government, with the exception of consumables. All parts shall be OEM parts that are new or certified OEM remanufactured. Upon identification of a need for replacement parts the contractor shall make their best efforts to deliver them within twenty-four (24) hours, or the following day, or the following business day should the delivery falls on a Friday or proceeding a Federal Holiday. If for any reason the delivery of parts takes longer than twenty-four (24) hours, the contractor must notify the COR immediately, and provide an estimated delivery date.

SOFTWARE UPDATES/SERVICE

The Contractor shall provide software service and updates in accordance with the manufacturer's latest established service procedures at no additional cost to the Government. Updates shall include error revisions, FDA-mandated updates (*if applicable*), reliability fixes to existing software, and all other similar updates. Additionally, the Contractor shall provide telephone access to technical support for use of program software and troubleshooting of the operating systems, at no additional cost to the Government. The contractor shall receive advance approval for the installation of all software updates and revisions from the Government. Defective software shall be replaced at no additional cost to the government.

TECHNICAL SUPPORT

The Contractor shall provide unlimited toll-free technical telephone and email support at no additional cost to the Government. General technical support shall be available 24/7, and for troubleshooting of the instrument and clinical application support shall be available MON-FRI 8:00 – 17:00 EST, excluding Federal holidays.

SERVICE EXCLUSIONS

The Contractor shall not be responsible for any repairs necessitated by abuse, neglect, vandalism, Acts of God, fire, or water. Repairs resulting from such events may be subject to a separate purchase order, a change order to the award, or any other means deemed appropriate by the Government. Further, the Contractor shall not be responsible for supplying or repair of consumables. Consumables for the purpose of this requirement are any item not directly associated with the covered types of equipment components, parts, or software.

PERSONNEL QUALIFICATIONS

The Contractor shall only provide technically qualified, OEM-trained, and authorized service technicians to perform all required services and provide technical support for equipment specified above in Section 3.0. The technicians shall be specifically trained on covered equipment, associated accessories, system components, and software. Technicians must have access to the latest official instrument documentation, system specifications, software, and components necessary to maintain and repair equipment to normal operating conditions. All primary service personnel shall have at least one backup support person with at least the same level of expertise on the equipment covered by this contract.

Contractor's personnel shall perform all work in a professional workman like manner and in accordance with OEM and industry standards. This includes ensuring that personnel always conduct themselves in a professional manner throughout the performance of work at specified NCI locations. Upon completion of the services, the Contractor's employees shall ensure that work areas are clean and free of all debris so as not to affect/hinder laboratory staff and operations. Further, the contractor shall be held responsible for the cost of any repair or replacement of any Government-owned property damaged by Contractor's employees.

CONTRACT TYPE

The anticipated contract is a firm-fixed-price Purchase Order for severable services.

PERIOD OF PERFORMANCE

The period of performance for this contract is a one-year base period with three one-year option periods as follows:

Base Period: July 2, 2026 – July 1, 2027

Option Periods

Option Period One: July 2, 2027 – July 1, 2028

Option Period Two: July 2, 2028 – July 1, 2029

Option Period Three: July 2, 2029 – July 1, 2030

DELIVERABLES

Description	Deliverable/ Format	Frequency
Quarterly Invoices with supporting documentation	Electronic	Quarterly
Field Service Reports	Electronic	As required

Reporting Requirements:

FIELD SERVICE REPORTS

Field Service Reports (FSR): The contractor shall provide an electronic FSR to NCI's COR within seventy-two (72) of hours of completion of any services performed on equipment or software covered under this requirement. The Contractor shall complete FSR to include at a minimum, the following:

1. Contractors Name;
2. Technician's name, telephone number, and signature;
3. Date and Time at which services were performed;
4. Equipment Make, Model, and Serial Number;
5. Summary of malfunction/issue;
6. Summary of work performed;
7. Certification that equipment is fully operational.

QUARTERLY INVOICES AND SUPPORTING DOCUMENTAION

Due to the COR on or before the 15th of the month following each quarterly reporting period. The first reporting period consists of the first full calendar month of performance plus any fractional part of the initial month.

PLACE OF PERFORMANCE

Onsite services shall be performed at the following locations:

<u>LAB POINT OF CONTACT</u>	<u>LOCATION</u>	<u>EQUIPMENT</u>
Katherine McKinnon	NIH, Main campus 41 Medlars Dr Bldg. 41, Room C310 Bethesda, MD 20892	FACSymphony A5 (Serial No.: R66096400137) FACSymphony A3 (Serial No.: H66093700003) FACSymphony A5 (Serial No.: H66096400111) FACSymphony S6 (Serial No.: R66293700077)
Shahram Farid	NIH, Main campus 10 Center Dr Bldg. 10, Room 3-5897 Bethesda, MD 20892	FACSymphony A3 (Serial No.: R66093700078) FACSymphony A3 (Serial No.: R66093700213) LSR Fortessa SORP (Serial No.: H64717700068) FACSymphony S6 (Serial No.: R66293700074)
Assiatu Crossman	NIH, Main campus 10 Center Dr Bldg. 10, Room 6B16 Bethesda, MD 20892	LSR Fortessa SORP (Serial No.: H64779500002) LSR Fortessa SORP (Serial No.: R64717700219) LSR Fortessa X-20 (Serial No.: H656385004) LSR Fortessa X-20 (Serial No.: R656385208) FACSymphony A5 (Serial No.: R66096400135) FACSAria Fusion (Serial No.: R65828200122) FACSymphony S6 (Serial No.: R662937A0013)
William Telford	NIH, Main campus 10 Center Dr Bldg.10, Room 3-3297 Bethesda, MD 20892	LSR Fortessa SORP (Serial No.: H64717700105) FACSAria III (Serial No.: P64828200227)
Ferenc Livak	NIH, Main campus 37 Convent Dr Bldg. 37, Room 6011 Bethesda, MD 20892	FACSCanto II (Serial No.: V33896202274) LSR Fortessa SORP (Serial No.: H17700008) LSR Fortessa SORP (Serial No.: H64717700128) FACSymphony A5 (Serial No.: R660964000078) FACSAria Fusion (Serial No.: P65828200015) LSR Fortessa (Serial No.: R649225B1014)

CONTRACTING OFFICERS REPRESENTATIVE (COR)

All services delivered to the COR will be deemed to have been accepted upon written confirmation of acceptance by the COR. The COR's approval or revision to the services delivered shall be within the general scope of work for the Purchase Order.

The following individual shall be the COR for this task order:

TBD at the time of award.

Performance of work under this Purchase Order must be subject to the technical direction of the Contracting Officer's Representative identified above. The term "technical direction" includes

direction to the Contractor that fills in details and otherwise serves to ensure that tasks outlined in the statement of work are accomplished satisfactorily. Technical direction must be within the scope of the statement of work.

The Contracting Officer's Representative **does not have the authority** to issue technical direction that:

- a. Constitutes a change of assignment or additional work outside the Statement of Work (SOW);
- b. Constitutes a change as defined in clause 52.212-4 (c) governing "Changes";
- c. In any manner causes an increase or decrease in the contract price or the time required for contract performance;
- d. Changes any of the terms, conditions, or requirements of the contract;
- e. Interferes with the Contractor's right to perform under the terms and conditions of the contract; or
- f. Directs, supervises, or otherwise controls the actions of the Contractor's employees.

Technical direction may be oral or in writing. The Contracting Officer's Representative shall confirm oral direction in writing within five business days, with a copy to the Contracting Officer. The Contractor shall proceed promptly with performance resulting from the technical direction issued by the Contracting Officers Representative. If, in the opinion of the Contractor, any direction of the Contracting Officer's Representative, or his/her designee, falls within the limitations in (b), above, the Contractor shall immediately notify the Contracting Officer no later than the beginning of the next Government business day.

Failure of the Contractor and the Contracting Officer to agree that technical direction is within the scope of the contract shall be subject to the terms of clause 52.212-4 (d) titled "Disputes."

INSPECTION AND ACCEPTANCE

Pursuant to FAR clause 52.212-4, all work described in the SOW to be delivered under this purchase order is subject to final inspection and acceptance by an authorized representative of the Government. The authorized representative of the Government is the NCI Contracting Officers Representative/Technical Point of Contact who is responsible for inspection and acceptance of all services, materials, or supplies to be provided by the Contractor.

Regardless of format, all digital content or communications materials produced as a deliverable under this purchase order, shall conform to applicable Section 508 Standards to allow Federal employees and members of the public with disabilities to have access to and use of information and data that is comparable to the access to and use of information and data by Federal employees or by members of the public who are not individuals with disabilities. Remediation of any materials that do not comply with the applicable Section 508 requirements as set forth below shall be the responsibility of the Contractor.

HHS guidance regarding accessibility of documents can be found at:

<https://www.hhs.gov/web/section-508/accessibility-checklists/index.html>

INSPECTIONS AND ACCEPTANCE REQUIREMENTS

The work product delivered by the contractor will be reviewed and approved for acceptance by the Contracting Officer/COR upon delivery by the contractor. The work performed shall be in

conformance with all Government regulations and policies including the Federal Acquisition Regulation (FAR), the Department of Health and Human Services Acquisition Regulations (HHSAR) and the National Institutes of Health (NIH) supplemental regulations and policies as appropriate.

TRAVEL

The anticipated contract is a total firm fixed price. This fee shall be all-inclusive of all costs associated with the performance of the work, including but not limited to: transportation, vehicle mileage, fuel, tolls, parking, and travel time. No separate travel-related expenses charges will be reimbursed or accepted as additional costs.